

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal filed in terms of
Section 331 of the Code of Criminal
Procedure Act No. 15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Court of Appeal Case No:

CA/HCC/0203-208/2023

High Court of Hambanthota Case No:

HC/62/2005

1. Jayathilaka Dissanayaka Ariyapala
alias Heenmalli
2. Ranasinghe Arachchige Matin *alias*
Kehel Lokumahaththaya (deceased)
3. Hewa Halpage Jayasena *alias* Wijitha
4. Seeni Pallage Janaka
5. Saman Bulathgama *alias* Kalu Aggala
ayya
6. Seeni Pallage Lalith Prasanna *alias*
Katuwana Sudda
7. Jayawardana Pathiranage Anura
Prabath *alias* Premasiri Sudda
8. Wijenayaka Pathiranage Mahinda
9. Wadurapperuwage Premadasa *alias*
Nande Ayya
10. Ranasinghe Arachchige Jinadasa *alias*
Dingi Mama

11. Gurusinghe Arachchige Rathnadeshapriya
12. Ranasinghe Arachchige Chaminda
13. Hewa Halpage Wasantha
14. Wijenayaka Pathiranage Priyantha *alias* Kumara
15. Jayawickrama Kankanamge Dilan Manjula *alias* Kammale Sudda
16. Wijenataka Pathiranage Keerthi
17. Gurusinghe Arachchige Rukman *alias* Shantha
18. Baragamage Nihal Nishantha *alias* Gamunu
19. Ranasinghe Arachchige Prasad Sanjeewa
20. Madurapperumage Ranjith Pushpakumara
21. PahalaMalli Gedara Nawarathna *alias* Janaka

Accused

AND NOW BETWEEN

1. Saman Bulathgama *alias* Kalu Aggala ayya
2. Seeni Pallage Lalith Prasanna *alias* Katuwana Sudda
3. Ranasinghe Arachchige Jinadasa *alias* Dingi Mama
4. Hewa Halpage Wasantha
5. Jayawickrama Kankanamge Dilan Manjula *alias* Kammale Sudda

6. PahalaMalli Gedara Nawarathna *alias*
Janaka

Accused – Appellants

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Anil Silva, PC, with Anjana Abeyratne for the 6th Accused-Appellant
: Neranjan Jayasinghe with Randunu Heellage and Pravindika Kularathne
for the 21st Accused-Appellant.
: Shavindra Fernando, PC, with R.F. Dopulle for the 14th and 15th Accused-
Appellants
: D. Mithrapala with Chinthaka Rankothge for the 10th Accused-Appellant
: Shanaka Wijesinhe, A.S.G. for the Respondent.

Argued on : 25.05.2026

Decided on : 09.07.2026

Pradeep Hettiarachchi, J**Judgment**

1. The case giving rise to this appeal was tried before the High Court of Hambantota by a Judge sitting without a jury. The Attorney-General initially indicted 21 accused on charges arising out of the death of Wijesingha Kankanamge Nandathissa and the injuries caused to Wijesingha Kankanamge Jayatissa, Abewikrama Kankanamge Emalihamy, and Wijesingha Kankanamge Ajith Priyantha. The indictment alleged that the offences were committed by the accused as members of an unlawful assembly and, in the alternative, in furtherance of a common intention.
2. At the conclusion of the trial, the Learned Trial Judge acquitted the remaining accused of all charges. However, the 5th, 6th, 10th, 13th, 15th, and 21st accused were convicted on the 1st and 2nd counts, namely, for being members of an unlawful assembly and committing the murder of Wijesingha Kankanamge Nandathissa. In addition, the 5th and 6th accused were convicted under Section 314 of the Penal Code for causing hurt to Abewikrama Kankanamge Emalihamy.
3. Being aggrieved by the said convictions and sentences, the 5th, 6th, 10th, 13th, 15th, and 21st accused (hereinafter referred to as "the Appellants") preferred the present appeal. During the pendency of the appeal, the 5th Appellant died.
4. The grounds of appeal urged on behalf of the Accused-Appellants, several of which are common to all, may be summarized as follows;
 - a. Prosecution witness No. 5 failed the test of credibility, and the Learned Trial Judge has failed to appreciate the deficiencies of the testimony of the PW5 as it failed the test of consistency as well;
 - b. Whether the prosecution has proved that the 21st Accused-Appellant was a member of the unlawful assembly; and,

- c. The Learned Trial Judge has failed to evaluate and give adequate reasons for rejecting defence evidence.
5. A principal contention advanced on behalf of all the Appellants is that the evidence of PW5 lacks credibility and fails to satisfy the test of consistency.
6. Accordingly, a careful analysis of PW5's evidence, particularly with regard to its credibility and consistency, is of paramount importance to the determination of the issues arising in this appeal.
7. According to PW5's evidence, the alleged incident occurred on 14.04.2003, which was a Sinhala New Year day. On account of the New Year festivities, PW5 and his family members were expecting the arrival of the deceased at their home. However, when the deceased failed to arrive, PW5, accompanied by his two nephews, Ruwan and Ranjith, proceeded on a motorbike in search of him towards Andarawewa. On their way, they encountered the 6th, 8th, and 15th accused.
8. When they reached Ketanwewa Junction, Ruwan was attacked by the 6th Accused. At that stage, the 1st Accused also arrived and assaulted them with clubs. Ranjith managed to escape; however, PW5 fell to the ground and was unable to flee. PW5 was thereafter assaulted, following which the assailants fled the scene.
9. After being assaulted, PW5 ran towards the tank known as Ketanwewa. While running along the bund, he fainted and remained unconscious for more than half an hour.
10. Thereafter, upon regaining consciousness, he heard noise and, on looking towards the road, observed the deceased approaching along the Gonnoruwa main road. As the deceased reached the culvert, he was assaulted by the 2nd, 13th, and 21st accused. The 10th Accused was also present at the scene and shouted words to the effect that the deceased should not be allowed to escape.
11. PW5 further stated that the 3rd, 4th, 5th, 6th, 8th, 10th, 14th, 15th, and 16th accused were also present at the scene armed with *katty* knives. But the 1st Accused was not there.

12. Moreover, PW5 testified that after the deceased had been assaulted by the 13th and 21st accused, he fell to the ground. Thereafter, the other accused allegedly ran towards the incident from the residence of the 16th Accused. PW5 further testified that, at that time, the 5th Accused obtained a hoe from the 16th Accused's residence and struck the deceased on the head with it.
13. However, PW5 testified that upon returning home after the incident, he did not inform anyone about what had transpired, as no one was present at the house at the material time. Nevertheless, according to his own evidence, both his mother and sister had also been assaulted during the incident and had subsequently been admitted to hospital for treatment.
14. Further, PW5 testified that he, too, sustained injuries during the incident and was admitted to the Hambantota Hospital, where he remained under medical treatment for a period of two days.
15. A careful examination of the evidence of PW5 reveals several material discrepancies and inconsistencies that cast serious doubt on the accuracy and reliability of his testimony. These are set out below;
16. PW5 testified before the Court that he was the person riding the bicycle at the time of the incident. However, this version is inconsistent with his statement to the Police, wherein he stated that it was his nephew, Sampath (PW7), who rode the bicycle. “බයිසිකලය පැදවෙන්න අපේ සමිපන් පුතා” (5D1, marked in evidence at vide page 266 of the Appeal Brief)
17. Furthermore, in his statement to the Police, PW5 stated that he traveled at the rear of the group on the motorcycle. This statement is inconsistent with his testimony before the Court that he was riding the bicycle, thereby creating a material discrepancy regarding his position and movements at the relevant time. “මම ගමන් කළේ යතුරු පැදියේ පිටුපසින්මයි.” (5D2, marked in evidence at vide page 266 of the Appeal Brief)

18. PW5 also gave inconsistent accounts regarding the time at which he went in search of the deceased. In his examination-in-chief, he testified that he went in search of the deceased at approximately 2.45 p.m. During cross-examination, however, he stated for the first time that he left the residence in search of the deceased at about 4.00-4.30 p.m. This version was not disclosed previously. Moreover, in his statement to the police, PW5 stated that he went in search of his brother, the deceased, at about 12.45 p.m. These materially divergent accounts regarding the timing of the events further undermine the credibility and reliability of PW's evidence. “අයිසා අළුතින් නැති නිසා අන්දරුවා යන්න ගියා ආවය 12.45 පමණ බයිසිකලයෙන් ගියා.” (5D3, marked in evidence at vide page 267 of the Appeal Brief)

19. Further, the defence has established a material omission in the evidence of PW5. In his statement to the police as well as in the proceedings before the Magistrate's Court, PW5 did not make any reference to the 5th Accused-Appellant assaulting the deceased on the head with a hoe. The said material fact was introduced for the first time in his testimony before the trial court, thereby giving rise to a significant omission affecting the consistency of his version.

20. Moreover, PW5 identified the 21st Appellant as Kumara; during his testimony. However, it is pertinent to note that the actual name of the 21st Accused is not Kumara. This misidentification further casts doubt on the accuracy of PW5's identification evidence.

“ප්‍ර: දැන් නමුත් කිව්වා 2,13, 21 විත්තිකරුවන් අයිසාව ගැහුවා කියලා?

උ: ඔව්

ප්‍ර: ඔවුන් නමින් දන්නවද?

උ: කුමාර කියලා නමයි දන්නේ.” (at vide page 248 of the Appeal Brief)

21. The next witness called on behalf of the prosecution was PW2, the sister of the deceased. According to her evidence, on the day of the incident, she visited her mother's residence. Thereafter, PW5 and two of her sister's sons proceeded in search of the deceased to Andarawewa on a bicycle. She further testified that, after a short while, PW5 returned in a state of distress and informed her that they had been assaulted.

“උ: ටික වෙලාවකින් මල්ලි දුවලා ඇවිල්ලා අපිට ගහනවා කිව්වා. අක්කගේ සුනාලා දෙන්නටත් ගහනවා කිව්වා.

ප්‍ර: තමන්ට මල්ලි කෙනෙක් කිව්වේ ගහනවා කියලා තමන් සදහන් කළේ? උ: ඔව්.

ප්‍ර: එහෙම කවිද ඇවිල්ලා කිව්වේ?

උ: අප්පිත් ප්‍රියන්න. ” (at vide page 286 of the Appeal Brief)

22. Accordingly, PW2, along with PW4, PW3, the wife of PW3, and the husband of PW2, proceeded to the scene of the incident. She further testified that, by that time, the deceased had already fallen to the ground after being assaulted.

23. Further, she testified that the 6th and 15th accused continued to assault the deceased while he was lying on the ground in a defenceless state.

“ප්‍ර: තමන් නන්දනිස්සට ගහලා වැටිලා හිටිය කිව්වා. කවුද නන්දනිස්සට ගැහුවේ?

උ: කටුවන සුද්දා, කම්මලේ සුද්දා වැටිලා ඉන්නකොට ගහනවා දැක්කේ. කැන්නෙන් ගහනවා දැක්කේ නැහැ. කටුවන සුද්දායි, කම්මලේ සුද්දායි ඒ දෙන්න තමයි ගැහුවේ. ” (at vide page 288 of the Appeal Brief)

24. When PW4 was attempting to protect PW3 (Jayatissa), the 6th and 15th Accused-Appellants allegedly attacked her with a *katty*. PW2 further stated that at that time the 3rd, 4th, 5th, 9th, 10th, 12th, 13th, and 18th accused were also present at the scene.

25. The defence elicited several material contradictions and omissions in the evidence of PW2 as follows;

26. According to her testimony, the family became aware of the alleged incident only after PW5 informed them of what had transpired. However, this version is clearly inconsistent with the evidence of PW5, who stated that upon returning home after the incident, no one was present at the residence and, as such, he was unable to inform

anyone of the occurrence. These mutually contradictory versions create doubt about the reliability and coherence of the prosecution evidence in that regard.

27. Further, the defence marked several material omissions in the evidence of PW2; whereas, PW2 did not disclose in her statement to the police that PW4 had been attacked by the 6th and 15th Accused-Appellants.

28. The next witness called on behalf of the prosecution was PW4, the mother of the deceased. According to her testimony, PW5 and her two grandsons had proceeded to Andarawewa in search of the deceased due to his absence on the day of the incident. Thereafter, upon hearing a commotion, she proceeded to the scene of the crime together with PW2, PW3, and her daughter-in-law. Upon arriving at the scene, she witnessed that the 10th Accused was allegedly assaulting PW3. She further testified that she was attacked by the 5th, 6th, and 15th Accused-Appellants with clubs and *katty* knife, causing injuries to her hand and back. According to her evidence, she subsequently lost consciousness. Therefore, it is evident that PW4 did not witness the actual assault on the deceased.

29. It is noteworthy that, while PW2 testified that they proceeded to the scene of the incident after PW5 informed them of the alleged assault, PW4 gave a materially different account. According to PW4, they proceeded to the scene upon hearing a commotion emanating from the area. These two versions are plainly inconsistent as to how they became aware of the incident and what prompted them to go to the scene. This contradiction casts further doubt on the reliability of the prosecution witnesses and undermines the consistency of the prosecution narrative regarding the sequence of events leading up to their arrival at the scene of the incident.

“ප්‍ර: ඒ අය ගෙදරින් ගියේ කීයට විතරද?

උ: 3.00 විතර.

ප්‍ර: ඒ ගියාට පස්සේ මොකද වුනේ?

උ: ගියාට පස්සේ පර පැත්තේ විලාපයක් ඇහුනා.” (at vide page 319 of the Appeal Brief)

30. PW3, the brother of the deceased, testified that he was also present in relation to the incident and gave evidence as to what allegedly transpired. According to his evidence, he and his wife had proceeded to water their cattle. While so proceeding, they heard commotion, following which he was allegedly subjected to abusive language by the 10th Accused-Appellant, and thereafter, attacked by him with a club.
31. Further, he testified that the 6th, 8th, 9th, 11th, 14th, 15th, 16th, 17th accused were present at the material time. However, it is significant that PW3 himself did not witness the actual assault on the deceased.
32. The next witness called on behalf of the prosecution was PW7, the nephew of the deceased. He testified that he, his brother, and PW5 proceeded from his grandmother's residence to Andarawewa in search of the deceased on a motorcycle, which was ridden by him. According to his evidence, they were allegedly assaulted by four accused, namely the 1st, 6th, 8th, and 15th Accused. He further stated that the 15th Accused-Appellant assaulted him on the head. PW7 also stated that, upon being assaulted, PW5 fled from the scene, and thereafter he too fled together with his brother.
33. The version of events narrated by PW7 is inconsistent with the evidence of PW5. According to PW5's testimony, he was the person riding the motorcycle while accompanied by his nephews. However, PW7's evidence directly contradicts this position, as he stated that it was he, PW7, who was riding the motorcycle at the material time. This material discrepancy between the two witnesses gives rise to a significant inconsistency in the prosecution evidence regarding a crucial aspect of the incident.

“ප්‍ර: අන්දරුවාට ප්‍රදේශයට බසික් එකෙන් නමාලා එනකොට කවුද පැදගෙන ගියේ?”

උ: මම ස්වාමිනි.

ප්‍ර: නමාද බසික් එක පැදගෙන ගියේ?”

උ: ඔව් ස්වාමිනි.” (at vide page 397 of the Appeal Brief)

34. Further, it is evident from the evidence of PW7 that PW5 fled from the scene immediately after the alleged assault commenced. In these circumstances, a serious

doubt arises as to whether PW5 was in fact in a position to witness the entirety of the incident as narrated in his evidence. This material aspect casts further doubt on the reliability and veracity of PW5's testimony, particularly as to his presence and ability to observe the events he claims to have seen.

“ප්‍ර: මාමා පැනලා ගියාද?

උ: ඔව්.

ප්‍ර: මාමා කොහෙද ගියේ?

උ: දැක්කේ නෑ” (at vide page 402 of the Appeal Brief)

35. Accordingly, it is significant that PW5 lacks credibility and his evidence fails to satisfy the test of consistency when compared with the testimonies of other prosecution witnesses. The material contradictions and omissions revealed in his evidence, when read in conjunction with the inconsistencies between his version and that of PW2, PW7, and other witnesses, seriously undermine the reliability of his account.

36. E.R.S.R. Coomaraswamy, in his work ‘*The Law of Evidence*’, has described how a Court should evaluate contradictions and omissions;

“ Another test that is applied in the evaluation of evidence is the test of inconsistency, contradictions per se and discrepancies in the evidence of the witness. A witness is often contradicted by his statements to the police under section 110 of the Code, 5 or by his depositions in the magistrate's court. Some may be positive contradictions, while others may be omissions, which may be of material facts or immaterial facts. In evaluating discrepancies, contradictions and omissions, it is undesirable for a court to pick out sentences and consider them in isolation from the rest of the statements. The entire statement should be taken into consideration to ascertain whether they are due to a deliberate attempt to suppress or depart from the truth. Witnesses should not be disbelieved on the basis of trifling discrepancies and omissions”

37. Further, it is noteworthy that a serious doubt arises as to whether PW5, who is projected by the prosecution as the sole eyewitness to the incident, was in fact in a position to

witness the events as he has narrated in his evidence. If PW5 was not present throughout the material time, the safety of relying upon his testimony to sustain a conviction against the Appellants is gravely undermined. In such circumstances, his evidence cannot be treated as wholly reliable or sufficient, and it would be unsafe to found convictions against the Appellants solely or substantially upon his testimony in the absence of independent corroboration.

38. To elaborate further, where material witnesses give inconsistent evidence on material particulars, their testimony loses its probative value and cannot safely be relied upon. Such inconsistencies inevitably cast serious doubt on the credibility of the prosecution case.
39. Further, it was contended that the prosecution has failed to establish, beyond reasonable doubt, that the 21st Accused-Appellant was a member of the alleged unlawful assembly.
40. In this regard, it is significant that only PW5 made reference to the presence of the 21st Accused-Appellant and attributed to him participation in the assault on the deceased. However, none of the other prosecution witnesses, namely PW2, PW4, and PW7, have made any reference whatsoever to the presence or involvement of the 21st Accused-Appellant at the material time. This account creates a serious lacuna in the prosecution case against the 21st Accused-Appellant.
41. Moreover, as stated earlier in this judgment, PW5, during his testimony, identified the 21st Accused-Appellant as 'Kumara.' However, it is pertinent to note that the actual name of the 21st Accused-Appellant is not 'Kumara.' This discrepancy raises a serious question regarding the correctness of PW5's identification of the 21st Accused-Appellant and further undermines the reliability of his evidence on this crucial issue.
42. Material discrepancies in a witness's evidence concerning the identification of an accused strike at the very root of the reliability of that evidence. In such circumstances, it would be unsafe for the Court to act upon the testimony of that witness without satisfactory corroboration.

43. In ***Sucha Singh Vs. State of Punjab, (2003) 7 SCC 643***, it was held inter alia:

“.....normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal, and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so.....Where it is not feasible to separate truth from falsehood, because grain and chaff are inextricably mixed up, and in the process of separation an absolutely new case has to be reconstructed by divorcing essential details presented by the prosecution completely from the context and the background against which they are made, the only available course to be made is to discard the evidence in toto.”

44. Further, since there exists a serious doubt as to whether PW5 actually witnessed the assault on the deceased in the manner he has described, his testimony regarding the presence of the 21st Accused-Appellant at the material time becomes highly doubtful and unsafe to rely upon. In such circumstances, the evidence of PW5, being uncorroborated on this crucial aspect and suffering from the issues of credibility and reliability, cannot be accepted as a safe basis to sustain a finding against the 21st Accused-Appellant. Therefore, it is my view that such identification cannot be regarded as sufficient to establish, beyond reasonable doubt, the presence or participation of the 21st Accused-Appellant in the alleged unlawful assembly.

45. Additionally, it is noteworthy that the Learned Trial Judge failed to specify whether the convictions of the 5th and 6th accused for voluntarily causing hurt were entered under Count 4, which was based on unlawful assembly, or under Count 8, which was founded on common intention. The judgment is silent on the precise count under which those convictions were recorded, thereby giving rise to uncertainty as to the legal basis of the convictions. In the absence of clear findings in this regard, the convictions are rendered legally uncertain and cannot be sustained without proper judicial reasoning on the specific foundation of liability.

46. The irrationality of the learned High Court Judge's reasoning is further manifested by the acquittal of the 14th and 16th accused, notwithstanding the evidence that they too were present at the scene armed with clubs and knives. The Appellants in the present appeal were convicted on the basis that they were members of an unlawful assembly. If the evidence accepted by the Learned High Court Judge established that the 14th and 16th accused were likewise present at the scene armed with clubs and knives, it is difficult to comprehend the basis upon which they were acquitted. The judgment discloses no cogent or plausible reasons for treating the 14th and 16th accused differently from the Appellants, thereby revealing a material inconsistency in the evaluation of the evidence and the conclusions reached by the Learned High Court Judge.
47. Upon careful consideration of the totality of the evidence and the material infirmities discussed above, it is my considered view that the convictions of the Accused-Appellants are unsafe and unsustainable in law. Accordingly, the convictions and sentences imposed on the Accused-Appellants are set aside, and the Accused-Appellants are acquitted of all charges.
48. The Appeal is accordingly allowed.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree

Judge of the Court of Appeal